

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Santosh Prakash	Team: Squad #08	CCRB Case #: 201602029	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 03/10/2016 12:30 PM	Location of Incident: Spruce & Gold Street; Frankfort Street and Gold Street	18 Mo. SOL 9/10/2017	Precinct: 01		
Date/Time CV Reported Fri, 03/11/2016 6:42 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Fri, 03/11/2016 6:42 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Jose Velasquez	12426	951382	102 PCT
2. SSA Carmine Nicastro	05089	905550	HQ SEC
3. SGT Salvator Rufolo	05202	904961	HQ SEC

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Joseph McGovern	01278	935282	HQ SEC

Officer(s)	Allegation	Investigator Recommendation
A . POM Jose Velasquez	Abuse: At Spruce Street and Gold Street, Police Officer Jose Velasquez stopped § 87(2)(b)	A . Substantiated
B . POM Jose Velasquez	Abuse: Police Officer Jose Velasquez refused to provide his name and shield number to § 87(2)(b)	B . Substantiated
C . SSA Carmine Nicastro	Abuse: At Frankfort Street & Gold Street, Sergeant Carmine Nicastro questioned § 87(2)(b)	C . Exonerated
D . SGT Salvator Rufolo	Abuse: At Frankfort Street and Gold Street, Sergeant Salvator Rufolo questioned § 87(2)(b)	D . Exonerated

Case Summary

On March 10, 2016, at approximately 12:20 pm, § 87(2)(b) photographed an NYPD officer's personal vehicle, parked at Frankfort Street and Gold Street, near One Police Plaza. § 87(2)(b) a public advocate, was photo-documenting the vehicle's illegal use of a license plate cover, typically installed to evade traffic enforcement cameras. When § 87(2)(b) left the area, and walked one block south to Spruce Street, he was stopped by PO Jose Velasquez, who instructed him to return to the vehicle at Frankfort Street (**Allegation A**). § 87(2)(b) walked back to the vehicle with PO Velasquez, who refused to provide his name and shield number (**Allegation B**). There, § 87(2)(b) was intrusively questioned by Sgt. Carmine Nicastro and Sgt. Salvator Rufolo (**Allegations C, D**). The incident did not result in a summons or arrest. There is video documentation of the incident, inserted below (See: B.R. 01 – § 87(2)(b) Statement; B.R. 02 – Incident Video; B.R. 03 – Video Transcription; B.R. 04 – § 87(2)(b) Vehicle Photos; B.R. 05 –Location Photos).



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Mediation, Civil and Criminal Histories

§ 87(2)(b) rejected mediation. Notice of Claim results are pending, § 87(2)(b) [§ 86(1)(3)&(4)] [§ 87(2)(g)]

Civilian and Officer CCRB Histories

- § 87(2)(b) has filed 4 prior CCRB complaints, § 87(2)(b)
- PO Jose Velasquez has been a member of service for 4 years: he has been a subject in two prior complaints, neither of which were substantiated. § 87(2)(g)
- Sgt. Carmine Nicastro has been a member of service for 22 years: he has been a subject in one prior CCRB complaint, closed as Unsubstantiated. § 87(2)(g)
- Sgt. Rufolo has been a member of service for 22 years: he has been a subject in two prior CCRB complaints, none of which were substantiated. § 87(2)(g)

Findings and Recommendations

Allegation A: Abuse – Stop: At Spruce Street and Gold Street, Police Officer Jose Velasquez stopped § 87(2)(b)

Allegation C: Abuse – Question: At Frankfort Street and Gold Street, Sergeant Carmine Nicastro questioned § 87(2)(b)

Allegation D: Abuse – Question: At Frankfort Street and Gold Street, Sergeant Salvator Rufolo questioned § 87(2)(b)

The facts here are largely undisputed. At Frankfort Street and Gold Street, § 87(2)(b) approached and photographed a vehicle parked in an on-street Department-only designated lot, located adjacent to a side access road into One Police Plaza. The access road is equipped with a barrier block and entry is restricted to authorized vehicles. Two NYPD security booths, typically occupied by two officers, regulate vehicle traffic going in and out. However, the booths and the parking lot are un-enclosed, and directly face a Pace University public plaza: between students and tourists, foot traffic is significant, and pedestrians are permitted to move freely through the access road, into the non-secure areas outside One Police Plaza (See: B.R. 05 – Location Photos).

§ 87(2)(b) stated that he was a public advocate with a particular interest in traffic violations committed by police officers, in their personal or departmental vehicles. On March 10, 2016, while walking by the on-street lot at Frankfort Street, § 87(2)(b) noticed that one of the parked vehicles had an illegal plastic cover installed on its rear license plate, representing that it happened to catch his eye. § 87(2)(b) stated that these plate covers were often used by off-duty police officers to evade traffic enforcement cameras, and decided to document the violation.

§ 87(2)(b) approached the vehicle, which was parked immediately next to the street-facing security booth (the first of two), and proceeded to photograph its front and rear license plates, as well as the NYPD placard displayed on its windshield. § 87(2)(b) stated that he spent approximately five minutes in the vicinity of the lot, and did not attempt to conceal his photography, or move about furtively. § 87(2)(b) then walked away and headed south on Gold Street, where he stopped at the south-western corner of Spruce Street. There, § 87(2)(b)

§ 87(2)(b) saw an unoccupied personal vehicle bearing an NYPD placard parked next to a fire hydrant, under a no-standing sign (B.R. 01 – § 87(2)(b) Statement).

§ 87(2)(b) proceeded to photograph this vehicle's plates. While doing so, he suddenly heard and saw a uniformed officer, identified as PO Jose Velasquez, calling out to him from the opposite side of the street. PO Velasquez shouted "come on, let's go," and waved at § 87(2)(b) to come over to him. When § 87(2)(b) stood still, confused, PO Velasquez shouted "you in the hat – come on let's go." § 87(2)(b) did not attempt to turn around or walk away, but complied and crossed over to PO Velasquez. § 87(2)(b) asked PO Velasquez why he was being stopped and where they were going. PO Velasquez only stated that that § 87(2)(b) could speak with his supervisor when they reached him. § 87(2)(b) and PO Velasquez proceeded to walk back towards Frankfort Street, at which time he asked him to identify himself, but did not receive a response. § 87(2)(b) recorded some of this exchange on video.

PO Velasquez brought § 87(2)(b) to the security booths adjoining the parking lot, where he was met by two officers, identified by the investigation as Sgt. Carmine Nicastro and Sgt. Salvator Rufolo. PO Velasquez then left the area as Sgt. Nicastro and Sgt. Rufolo now began to question § 87(2)(b) about why he was photographing police vehicles. Even after § 87(2)(b) explained his intentions, and the three jointly inspected the vehicle's license plate cover, the officers continued to question him about his ultimate purpose, and about who he worked with. When § 87(2)(b) asked the officers to summons the violating driver, Sgt. Nicastro refused, citing discretion. Sgt. Nicastro and Sgt. Rufolo ultimately walked away from § 87(2)(b) who had not felt free to leave until that point (B.R. 01 – § 87(2)(b) Statement).

PO Velasquez, temporarily re-assigned to Headquarters Security from the 102nd Precinct, was assigned to occupy the second security booth, as the barrier operator. PO Velasquez stated that he was first alerted to § 87(2)(b)'s presence by PO Joseph McGovern, his partner, at which time he saw § 87(2)(b) standing on the opposite side of the street, pointing his phone at the parking lot. PO Velasquez testified that PO McGovern told him he had observed § 87(2)(b) inside the lot, closely photographing the parked vehicles. PO Velasquez also stated that PO McGovern informed him that § 87(2)(b) had gone to the rear of the vehicle, though he could not recall when he said this. PO Velasquez did not personally see § 87(2)(b) approach the parking lot, and was unclear and inconsistent about what § 87(2)(b) was doing as the officers observed him. However, PO Velasquez determined that § 87(2)(b) may be “casing the location,” though he was not sure what he was casing for. Ultimately, PO Velasquez stated that § 87(2)(b) suddenly left the scene and “speed-walked” away, possibly after realizing that the officers were watching him. After PO McGovern radioed for a supervisor, PO Velasquez independently decided to stop § 87(2)(b) and bring him back to the booth for questioning. PO Velasquez left his post and followed § 87(2)(b) down Gold Street, observing no further furtive movements. PO Velasquez reached § 87(2)(b) at Spruce Street, where he appeared to have voluntarily paused. There, PO Velasquez told § 87(2)(b) that his supervisor needed to speak with him, and asked him to walk back with him. When § 87(2)(b) questioned PO Velasquez, and asked him if he was under arrest, PO Velasquez said no and again stated that his supervisor wanted to ask him some questions “regarding you at the previous location.” Though angry, § 87(2)(b) ultimately decided to follow PO Velasquez back to the booths. PO Velasquez stated that § 87(2)(b) would have been free to walk away (B .R. 06, 13– PO Velasquez Statement, Memo Book).

PO McGovern stated that he only saw § 87(2)(b) at the front of the vehicle parked closest to his booth, photographing its license plate and windshield. PO McGovern stayed inside his booth and watched § 87(2)(b) without engaging him in any manner. After § 87(2)(b) walked away from the scene, PO McGovern exited his booth and reported the observation, per standard protocol. PO McGovern, on his third year at Headquarters Security, stated that he was familiar with the attendant security risks, terrorism being number one, and vehicle vandalism being number two. Even with this experience and knowledge, PO McGovern stated that he did not feel compelled to approach, question, or stop § 87(2)(b) despite his unusual actions, which did not resemble the motions of tourist photographers in the area. PO McGovern stated: “when a guy pops out of nowhere taking pictures of a license plate and plaque, it raised my curiosity – but it didn’t bring me to alarm where I’d stop him.” When he radioed, PO McGovern only stated that he had seen someone taking photographs of a police vehicle in the lot. When PO Velasquez then

approached him, PO McGovern only stated that a male had been photographing a police vehicle's license plate and placard. Upon hearing this PO Velasquez – without any further inquiry or discussion – walked off post and headed down Gold Street, appearing to follow § 87(2)(b) PO McGovern unequivocally stated PO Velasquez was never instructed to follow § 87(2)(b) (B.R. 08, 12, PO McGovern Statement, Memo Book)

Sgt. Nicastro and Sgt. Rufolo corroborated PO McGovern's statement – nothing was said to suggest that § 87(2)(b) had to be followed, stopped, or returned for questioning. The sergeants ultimately stated that they responded to PO McGovern's report and found § 87(2)(b) standing near the booth, possibly with PO Velasquez: they described a five minute interaction with § 87(2)(b) during which it quickly became apparent that no criminal activity was afoot. § 87(2)(b) was eager to detail his photo-documentary actions and intent – as such, no intrusive questioning was necessary, and § 87(2)(b) was free to leave at any time he chose. Sgt. Nicastro and Sgt. Rufolo both stated that § 87(2)(b) appeared inclined to stay on the scene voluntarily, if only to debate the officers on traffic enforcement policy. Sgt. Nicastro and Sgt. Rufolo agreed that PO Velasquez had not followed protocol in leaving his post, but both stated that his actions were condonable (B.R. 07, 09, 10, 11 – Sgt. Nicastro Statement, Sgt. Rufolo Statement, Sgt. Nicastro Memo Book, Sgt. Rufolo Memo Book).

Per People v. De Bour, officers may exercise their common-law right to inquire, by approaching and gaining explanatory information from a civilian, when “there is a founded suspicion that criminal activity is afoot.” This inquiry, however, cannot restrict a civilian's freedom of movement, physically or constructively, absent “reasonable suspicion” that the individual “has committed, is committing, or is about to commit a felony or misdemeanor.” (B.R. 14 - People v. De Bour, 40 N.Y.2d 210, 223 (1976)). Mere following, as a form of surveillance, does not constitute a seizure. However, police pursuit is tantamount to seizure under the Fourth Amendment, and must be supported by reasonable suspicion (See: B.R. 15 – People v. Steinbergin, 4 A.D.3d 192 (2004); B.R. 16 – People v. Murrell, 859 N.Y.S.2d 897 (2007)).

By the fellow officer rule, a police officer “is entitled to act on the strength of a radio bulletin or a telephone or teletype alert from a fellow officer or department and to assume its reliability.” (B.R. 17 – People v. Lypka, 36 N.Y.2d 210 (1975))

The right to photograph on public property is protected under the First Amendment. This principle is carried in Patrol Guide Procedure 212-49: “Members of service will not interfere with the videotaping or the photographing of incidents in public places. Intentional interference such as blocking or obstructing cameras or harassing the photographer constitutes censorship.” (B.R. 18 – P.G. 212-49)

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED] It is therefore recommended that **Allegation A** be closed as **Substantiated** and **Allegations C** and **D** be closed as **Exonerated**.

Allegation B: Abuse – Refusal to provide name and shield number: Police Officer Jose Velasquez refused to provide his name and shield number to § 87(2)(b)

§ 87(2)(b) stated that he repeatedly asked PO Velasquez to identify himself while walking back to Frankfort Street, but did not receive a response. § 87(2)(b) submitted the following video capturing some of the exchange (B.R. 01, 02 – § 87(2)(b) Statement, Incident Video, see Snag-it clipped below). § 87(2)(b) can be heard asking PO Velasquez to identify himself three times. On the third request, at 00:13, PO Velasquez turns around and states: “what you gonna put it on YouTube?” (B.R. 03 – Video Transcription).



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PO Velasquez initially stated that § 87(2)(b) only asked him for his name once, when they reached the intersection of Frankfort Street and Gold Street, and did not recall any prior requests. PO Velasquez stated that he answered § 87(2)(b) by pointing to his name plate/shield. Upon reviewing the video, PO Velasquez changed his testimony, stating that § 87(2)(b) had asked for his name earlier, when he first stopped him. Again, PO Velasquez stated that he just pointed to his name plate/shield (B.R. 06 – PO Velasquez Statement)) PO Velasquez failed to articulate any reasons why he did not or could not verbally respond to § 87(2)(b). When asked to explain his Youtube remark, PO Velasquez stated that he thought § 87(2)(b) already had his name – that he was just repeating the question to “make it look good on film.” (B.R. 06 – PO Velasquez Statement).

Per Patrol Guide Procedure 203-09, officers must “courteously and clearly” state their “rank, name, shield number and command, or otherwise provide them,” to anyone who requests. Officers must allow the person ample time to note this information. (B.R. 19 – P.G. 203-09)

§ 87(2)(g)

§ 87(2)(b)

It is therefore recommended that **Allegation B** be closed as **Substantiated**.

Squad: 8

Investigator:	_____	_____	_____
	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date